

taining a qualification, and had been rated to the parish collusively, and that where a disqualified candidate was elected after notice to the electors of such disqualification, the votes were thrown away, and that the opposing candidate, though he had a minority of votes, was duly elected (*b*). But on appeal Lord Justice James observed, that if the law allowed a man to be qualified, he was qualified however his qualification might have been gained — that men constantly acquired qualifications for voting in counties by buying a 40*s.* freehold for the sole purpose of giving themselves votes, and the decree of the Court below was reversed (*c*).

35. **Retainer of the charity fund.** — It need scarcely be remarked that a trustee would be guilty of a gross breach of trust, should he keep the charity fund in his hands, and not apply it, as it becomes payable, to the objects of the trust (*d*).

36. **Alienation of the charity estate.** — Trustees of charities could not as a general rule, even before the restrictions recently imposed, have made an absolute disposition of the charity estate: they could not, for instance, have parted with *lands* to a purchaser, and have substituted instead the reservation of a *rent* (*e*). And as the trustees could not have aliened absolutely, so they could not have accomplished the same end indirectly by demising for long terms of years as for 999 years (*f*); or for terms of ordinary duration, with covenants for perpetual renewal (*g*): or by granting reversionary terms (*h*).

37. **Where allowable.** — But there was no positive rule that in *no* instance could an absolute disposition be made, for then the Court itself could not have authorised such an act — a jurisdiction which, it is * acknowledged, has [*540] from time to time been exercised in special cases.

(*b*) *Etherington v. Wilson*, 20 L. R. Eq. 606.

(*c*) 1 Ch. D. 160.

(*d*) *Duke*, 116.

(*e*) *Attorney-General v. Kerr*, 2 Beav. 420; *Blackston v. Hemsworth Hospital, Duke*, 49; *Attorney-General v. Brettingham*, 3 Beav. 91; and see *Attorney-General v. Buller, Jac.*

412; *Attorney-General v. Magdalen College*, 18 Beav. 223.

(*f*) *Attorney-General v. Green*, 6 Ves. 452; *Attorney-General v. Pargeter*, 6 Beav. 150.

(*g*) *Lydiatt v. Foach*, 2 Vern. 410; *Attorney-General v. Brooke*, 18 Ves. 326.

(*h*) See *Attorney-General v. Kerr*, 2 Beav. 420.